



File No: EXP202213406

RESOLUTION OF TERMINATION OF THE PROCEDURE DUE TO VOLUNTARY PAYMENT

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On May 5, 2023, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against BANCO BILBAO VIZCAYA ARGENTARIA, S.A. (hereinafter the claimed party). The initiation agreement was notified, and after analyzing the allegations presented, on December 21, 2023, the proposed resolution was issued, which is transcribed below:

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File No: EXP202213406

PROPOSED RESOLUTION OF SANCTIONING PROCEDURE

From the procedure initiated by the Spanish Agency for Data Protection and based on the following:

BACKGROUND

FIRST: On October 21, 2022, a written complaint was submitted to this Agency by A.A.A. (hereinafter, the claiming party), in which a complaint is made against BANCO BILBAO VIZCAYA ARGENTARIA, S.A. with NIF A48265169 (hereinafter, BBVA), for a possible breach of the provisions of personal data protection regulations.

The reasons on which the complaint is based are as follows:

The claiming party, married under a separation of property regime, states that she is in the process of divorce. During this process, the other party submitted documentation related to a "Consultation of Movements of Pension Plans" concerning a product solely owned by her.

As a result of what occurred, she filed a complaint with BBVA's Customer Service and requested information regarding the branch and terminal from which the consultation was made, as well as the identity of the individuals who had access to it and the initiation of the corresponding disciplinary file. On June 2, 2022, she received a response from BBVA indicating the following: "We regret any inconvenience if your personal data has been communicated to a third party. In this regard, please be assured that we will evaluate the facts you have reported, and for this purpose, we have informed the responsible parties involved so that appropriate measures may be taken to correct situations like the one you have kindly brought to our attention."

Along with the complaint, the following documentation is provided:

- Document No. 1: copy of the judicial decree dated ***DATE.1 admitting the divorce petition by the claiming party against B.B.B.
- Document No. 2: copy of the "Consultation of Economic Movements of Pension Plans" issued by BBVA on May 12, 2021. In the "Holder" section, the name, surname, and ID number of the claiming party are listed.
- Document No. 3: photograph of BBVA's response, dated June 2, 2022, to the information request sent by the claiming party.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), on December 16, 2022, the complaint was forwarded to BBVA for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was acknowledged on December 19, 2022, as noted in the acknowledgment of receipt in the file.

THIRD: On January 21, 2023, in accordance with Article 65 of the LOPDGDD, the complaint submitted by the claiming party was admitted for processing.

FOURTH: On January 24, 2023, BBVA requested this Agency for an "extension of the ten working days granted to submit allegations"; and on January 30, 2023, a letter was received from BBVA stating the following:

- BBVA initiated the relevant actions to clarify the facts subject to the complaint, communicating this decision to the claiming party by letter dated January 18, 2023. After informing its Internal Audit department of the facts, it verified that the extract of "Consultation of Economic Movements of Pension Plans" was generated by the BBVA office located in ***LOCALITY.1, corresponding to the branch where the claiming party contracted the pension plan in question. BBVA stated that the employee did not acknowledge the facts and that the employees of the entity are aware of the internal regulations on Personal Data Protection, so there was, in its opinion, no indication or evidence to conclude that BBVA or its employees had incurred in any type of non-consensual transfer of personal data.

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- BBVA had implemented different internal regulations to guarantee and protect the processing of personal data of its clients.

Along with this document, the following documentation is provided:

- As Document No. 1: communication dated 01/18/2023, which BBVA sent to the claimant.
- As Document No. 2: copy of the "Data Protection Protocol. Data Protection Office (DPO)."
- As Document No. 3: copy of the news bulletin "Hoy," dated 03/12/2018, which BBVA sends to its employees.
- As Document No. 4: copy of "Personal Data Protection Regulation. April 2022."

FOURTH: According to the report obtained from the AXESOR tool, on 04/12/2023, the entity BBVA is a group parent company established in 1990. In the sections "Sales" and "Total Assets" of the "Economic Group," more than €1,000,000,000 are recorded, respectively.

FIFTH: On 05/05/2023, the Director of the Spanish Agency for Data Protection decided to initiate sanctioning proceedings against BBVA, in accordance with the provisions of Articles 63 and 64 of the LPACAP, for the alleged violations of Articles 5.1.f) and 32 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), classified under Articles 83.5.a) and 83.4.f) of the GDPR, respectively.

This initiation agreement, which was notified in accordance with the rules established in the LPACAP through electronic notification, was delivered to BBVA on 08/05/2023.

SIXTH: On 13/06/2023, BBVA submitted a written statement to this Agency in which it presented allegations against the initiation agreement.

In these allegations, in summary, it stated that:

- BBVA had implemented security measures appropriate to the risk. To substantiate this claim, it provided the following documentation:
 - o Document No. 1 "BBVA Group Code of Conduct."
 - o Document No. 2 "General Privacy and Data Protection Policy."
 - o Document No. 3 "Corporate Regulation on Personal Data Protection."
 - o Document No. 4 "Personal Data Protection Regulation."
 - o Document No. 5 "Regulation for the Admission, Identification, and Knowledge of Clients."
 - o Document No. 6 "Policy on the Protection of Personal Data Derived from Your Employment Relationship."
 - o Document No. 7 "Daily Information Bulletin dated 12/03/2018."
 - o Document No. 8 "Data Protection Protocol."
 - o Copy of an email sent (***EMAIL.1) on 13/06/2023 at 13:28, titled "GDPR Course Information for the Spain Group."
- The interpretation made by this Agency regarding Article 32 of the GDPR is incorrect, as it is an obligation of means, not of result; according to the Supreme Court Judgment of 15/02/2022 (cassation appeal 7359/2020).
- BBVA took disciplinary measures against the employee who accessed the personal data of the

claimant after an "undesired outcome" occurred. It provided:

- o Document No. 10 certifying the training received by the employee in personal data protection.
- The principle of non bis in idem has been violated, as the lack of security measures would constitute two violations (Articles 5.1.f) and 32 of the GDPR) of the same protected legal asset.
- And, subsidiarily, that there is concurrence of the violations of Articles 5.1.f) and 32 of the GDPR.

SEVENTH: On 17/11/2023, a complete copy of the proceedings incorporated into this sanctioning procedure was sent, and an extension of the deadline to submit allegations was granted, following BBVA's written statement of 17/05/2023.

EIGHTH: On 18/12/2023, the instructing body of the procedure decided to open a period for evidence, considering the complaint filed by the claimant and its documentation, as well as the allegations against the initiation agreement of this sanctioning procedure presented by BBVA and the accompanying documentation.

NINTH: A list of documents in the procedure is attached as an annex.

From the actions taken in this procedure and the documentation in the file, the following has been established:

PROVEN FACTS

FIRST: In the complaint dated 21/10/2022, the claimant states that, in the divorce proceedings against B.B.B., he submitted as evidence a "Consultation of Economic Movements of Pension Plans" issued by BBVA, which is owned by the claimant.

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In Document No. 2 accompanying the claim, the following data can be observed, among others:

- Date and time of issuance: 12/05/2021 at 09:28 hours.
- Holder: ***NIF.1 A.A.A.
- Contract account: ***CUENTA.1

SECOND: On 02/06/2022, as stated in Document No. 3 accompanying the claim, BBVA sent a letter to the claimant in response to their request for information. The content is as follows:

“***A.A.A.:

We have received the letter you sent dated April 22, 2022. Your reference number is (...).

The subject of your claim, as stated in your communication, is to express your disagreement because during a liquidation procedure of the community property, the other party submitted an attached document along with their letter. You state in your letter that this document refers to a financial product owned by you, for which you did not provide your consent, and therefore you request that different detailed information regarding the document subject to your claim be provided.

Because at BBVA our goal is transparency with our clients, after carefully reviewing the facts you describe, we indicate that we regret any inconvenience if your personal data has been transferred to a third party.

In this regard, please be assured that we will evaluate the facts you report and for this purpose, we have informed the responsible parties involved so that appropriate measures may be taken to correct situations such as those you have kindly brought to our attention.”

THIRD: According to Document No. 1 of the response dated 30/01/2023 to the transfer of the claim, on 18/01/2023 BBVA sent a communication to the claimant with the following content:

“***A.A.A.:

We are addressing you regarding the letter you sent to this entity dated December 19, 2022, through the Spanish Data Protection Agency. Your reference number is (...).

The subject of your claim is related to your previous claim sent to this service, with reference number (...), in which you requested information about the person who had accessed the terminal from which, as you indicate, information about a product owned by you was provided to a third party unknown to you.

Regarding the issue you raise, concerning the identification of the employee of the Entity who accessed your products and provided information to third parties, we would like to clarify that the right

of access recognized by Regulation (EU) 2016/679 (...), is limited to the following terms: "The data subject shall have the right to obtain from the controller confirmation as to whether or not personal data concerning them are being processed, and in such case, the right of access..."

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to personal data, and to the information contained in Article 15 of the General Data Protection Regulation."

Additionally, we must inform you that providing the information you request would constitute a breach of personal data by this Entity.

Without further ado, please accept our warmest regards."

FOURTH: On 30/01/2023, in response to the transfer made by this Agency, BBVA submitted:

1.
Data Protection Protocol. Data Protection Office (DPO) (Document No. 2), undated and unsigned, lists a series of recommendations directed at the employees of the entity on how to handle personal data of clients. Specifically, several real examples are included, such as the following:

"Example: A person presents themselves at an office as a relative of a client and requests information about this client from the Bank. The supposed relative is neither a joint account holder nor a borrower in other financing operations of the client. YOU MUST NOT inform third parties of your clients' data or their operations."

2.
News Bulletin "Hoy" dated 12/03/2018 (Document No. 3) that informs the employees of the entity about the aforementioned protocol.

3.
Personal Data Protection Regulation (Document No. 4), which states "approved on 01/04/2022," establishes the principles that will govern the protection of such data and the responsibilities of BBVA as the data controller, as well as other operational aspects related to this matter.

In section 4.1.1 "Proactive Responsibility," it is stated:

"Security Measures

In relation to the security of the data, the Bank, as the data controller, is obliged to adopt the necessary technical and organizational measures to ensure an adequate level of security for personal data and to prevent its alteration, loss, destruction, accidental damage, unauthorized or unlawful processing or access, taking into account the state of technology, the nature of the data, and the risks to which they are exposed, whether arising from human action or the physical or natural environment.

In compliance with this obligation, the Bank must implement security measures appropriate to the level of risk of each of the processing activities carried out, based on the most demanding standards, from the design of each initiative.

Employees who access personal data under the control of the Bank are obliged to respect each and every one of the security measures implemented.

Without prejudice to the corresponding operational regulations that the Bank establishes at any given time, the following are some essential aspects regarding the matter:

1. Employees will have authorized access solely and exclusively to those data that they need for the performance of their functions, all in accordance with the definition of the profile of each job position.

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2. Employees are required to comply with the security standards established for personal data related to the performance of their duties.

3. Unauthorized access to personal data by employees constitutes a breach of security measures and,

in turn, exposes the Bank to potential sanctions.

4. Employees are obligated to inform the CERT of any incident that directly or potentially affects the confidentiality, integrity, or the internal policies and regulations governing the use of personal data under the control of BBVA.

In section 4.1.4 "Duty of Secrecy," it is stated:

"The Bank, as the data controller, is obliged to maintain professional secrecy regarding the personal data contained therein, and to use it exclusively for the performance of the functions it carries out. This obligation will persist even after the relationship with the client has ended.

Therefore:

1. Personal data of clients may not be communicated to third parties, nor may any elaborations, analyses, or similar processes be shared, nor may all or part of the information be duplicated or reproduced, except with the express authorization of the data subject.

2. Special attention must be paid to ensure that no document containing personal data, such as account statements, transactions, economic data, employment information, etc., is delivered to individuals who are not the data subjects and/or holders of the specific banking product, even if they are family members or close associates, all without prejudice to the rights that descendants, heirs, or interested parties in the inheritance of deceased banking holders may have, which will be subject to analysis in each specific case."

In section 4.1.5 "Communication of Data to a Third Party," it is indicated:

"Personal data subject to processing may only be communicated or transferred to third parties for the fulfillment of purposes directly related to the legitimate functions of the transferor and transferee, with the prior express consent of the data subject. (...)"

3.

Regulation for the admission, identification, and knowledge of clients (Document No. 5), approved in December 2022, states in section 7.6 the following:

"The verification of identity shall be carried out prior to the establishment of the business relationship or the execution of occasional operations, without prejudice to the fact that they may occur with clients who are not physically present, provided that one of the circumstances detailed in section 7.22 and subsequent sections regarding Identification Procedures applicable in web and mobile channels is met."

FIFTH: On 06/13/2023, in the written allegations to the initiation agreement of the present sanctioning procedure, BBVA submits:

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1.

BBVA Group Code of Conduct (Document No. 1), which states "approved by the BBVA Board of Directors on 09/02/2022," details the mandatory conduct guidelines for all employees of the group.

In section 4.8 "Confidentiality and Personal Data Protection," it is noted:

"4.8.1. In the course of your professional activity, you may come to know and handle personal data. Remember that the protection of personal data is a fundamental right, and you must ensure the protection of the data of our clients, shareholders, suppliers, BBVA colleagues, and any other person. If you have any doubts, consult the data protection officer.

4.8.2. The information of clients, employees, or any third party that you have accessed by reason of your professional activity is confidential; keep it reserved and take the necessary measures to collect, store, and access that data in accordance with applicable regulations, avoiding unauthorized access and complying with internal regulations on the matter. 4.8.2 Maintain confidentiality and reserve regarding the plans, projects, and strategic activities of BBVA Group, as well as any other strictly professional information to which you have accessed by reason of your work. If you detect inappropriate access to information, be responsible and report it to the Corporate Security Unit.

4.8.3. The obligation of confidentiality and reserve persists even after your relationship with BBVA has

ended.”

In section 6.4.4 “The Whistleblowing Channel,” it is indicated:

“The Compliance Unit will process the complaints received diligently and promptly, promoting their verification and driving measures for their resolution, in accordance with the procedures for managing the Whistleblowing Channel. The information will be analyzed objectively, impartially, and confidentially. Confidentiality will be maintained regarding the identity of the whistleblower. The information will be disclosed exclusively to those areas whose collaboration is necessary for verification actions, avoiding harm to the outcome of the investigation or the good name of the individuals affected. BBVA Group has adequate mechanisms to prevent potential conflicts of interest during the investigation process of the complaints. The results of the verification actions will be communicated to the areas that must implement the corresponding mitigation or correction measures, in addition to the accused and the whistleblower, when appropriate.”

1.

General Privacy and Data Protection Policy (Document No. 2), which states "approved by the BBVA Board of Directors on 28/09/2022," establishes the general principles and basic management and control guidelines that the Group must follow regarding the privacy and protection of personal data of individuals and legal entities in the processes and data treatments carried out within BBVA Group, in compliance with the provisions of applicable regulations.

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In point 3 "General Principles," it is stated:

"Confidentiality Principle: Data must be maintained and stored in a manner that ensures its confidentiality. In particular, any information or data accessed as a result of performing the activity may not be disseminated, transmitted, or disclosed to third parties, nor may such information be used for personal gain, unless there is express or contractual authorization or the information has been requested by an administrative or judicial authority. This obligation shall remain in effect even after the contractual relationship has ended."

In point 5.3 "Control Model," it is stated:

"5.3 Control Model

Control over the degree of compliance with this Policy and its development will be carried out in accordance with the internal control model established at any given time by the Group, aimed at adequate risk management, which is structured on the basis of three independent lines of defense. The various control functions will actively and regularly cooperate in supervising the application of this Policy, in accordance with the powers conferred upon them. All rules and procedures related to privacy or data protection must comply with this Policy."

2.

Corporate standard for the protection of personal data (Document No. 3), which contains "date 19/05/2023," which "implies the repeal of the current Personal Data Protection Standard, in effect until now for BBVA and its subsidiaries in the geography of Spain." Its content details the guidelines that will govern the protection of personal data, as well as the main responsibilities of the areas involved in data protection throughout its lifecycle or in processes that involve the processing of personal data, always complying with the provisions of applicable regulations.

In point 3.2 "Principle of the Standard," it is stated:

"Confidentiality Principle: Data must be maintained and stored in a manner that ensures its confidentiality. In particular, any information or data accessed as a result of performing the activity may not be disseminated, transmitted, or disclosed to third parties, nor may such information be used for personal gain, except in accordance with the provisions of applicable regulations. This obligation shall remain in effect even after the contractual relationship has ended."

In section c) of point 4.5.1 "Privacy by Design and by Default," it is indicated:

"Security Measures

The Entity must adopt the relevant technical, legal, and organizational measures for personal data in order to prevent alteration, loss, destruction, accidental damage, unauthorized or unlawful processing or access, taking into account the state of technology, the nature of the data, and the risks to which they are exposed, whether arising from human action or the physical or natural environment. In compliance with this obligation, appropriate security measures must be implemented according to the level of risk of each of the personal data processing activities carried out."

In point 4.5.3 "Duty of Secrecy," it is stated:

"The Entity is obliged to maintain professional secrecy regarding the personal data for which it is responsible or entrusted, and to use it exclusively for the performance of the functions it carries out. This obligation will persist even after the relationships with the data subject have ended."

3.

Standard for the protection of personal data (Document No. 4), which contains "date 23/03/2023," which addresses the principles that will govern the protection of personal data and the responsibilities of BBVA as the data controller, as well as other operational aspects related to this matter.

The content of point 4.1.1 "Proactive Responsibility," 4.1.4 "Duty of Secrecy," and 4.1.5 "Communication of Data to a Third Party" is identical to the version of 01/04/2022 mentioned in section four of the Established Facts.

4.

Standard for the admission, identification, and knowledge of clients (Document No. 5), which contains "date 02/12/2022," includes the obligation to securely identify clients prior to establishing a business relationship or executing occasional operations.

The content of point 7.6 "Formal Identification of Clients" is identical to that mentioned in section four of the Established Facts.

5.

Policy for the protection of personal data derived from your employment relationship (Document No. 6), which contains "date 24/04/2023."

6.

Daily information bulletin dated 12/03/2018 (Document No. 7) and Data Protection Protocol, the content of which is identical to that mentioned in section four of the Established Facts.

7.

Copy of an email sent (***EMAIL.1) on 13/06/2023 at 13:28 hours, titled "GDPR Course Information for the Spain Group," with the following content:

"Good afternoon:

Regarding the employee (anonymized) according to the information obtained from the reports provided by Formación España, the following courses have been completed:

- GDPR, completed on 26/11/2018.
- Code of Conduct, completed on 14/11/2022.

On the other hand, we provide the data regarding the completion of the Spain Group for the following courses, obtained from the reports of the staff provided by Talent and Culture from Formación España: GDPR Course, Data as of 31/05/2023:

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Total staff: 16,453. Trained before 2023: 13,758. Trained in 2023: 453. Not trained: 2,242.

Course Code of Conduct, data as of 31/05/2023:

Total staff: 16,543. Trained before 2023: 7,560. Trained in 2023: 8,339. Not trained: 554.

****LEGAL GROUNDS****

I

****Competence and applicable regulations****

In accordance with the powers granted to each supervisory authority by Article 58.2 of the GDPR, and as established in Articles 47, 48.1, 64.2, and 68.1 of the LOPDGDD, the Director of the Spanish Data Protection Agency is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Data Protection Agency shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, to the extent that they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

****Preliminary issues****

In this case, in accordance with the provisions of Articles 4.1 and 4.2 of the GDPR, there is evidence of the processing of personal data, given that BBVA collects and retains, among others, the following personal data of individuals: name and surname, address, phone number, account number, among others.

BBVA carries out this activity in its capacity as data controller, as it determines the purposes and means of such activity, pursuant to Article 4.7 of the GDPR.

III

****Claims made****

In relation to the claims made regarding the initiation agreement of the present sanctioning procedure, responses are provided as follows.

1. Regarding the alleged violation by BBVA of Article 5.1(f) and 32 of the GDPR

BBVA claims to have appropriate and adequate technical or organizational security measures in place relative to the risk. In order to substantiate the existence of such measures, it provides the documentation indicated in section five of the Established Facts.

BBVA indicates that this Agency makes an erroneous interpretation of the GDPR, as it considers that the obligation imposed by Article 32 of the GDPR on the data controller is one of results. According to the Supreme Court ruling of 15/02/2022 (cassation appeal 7359/2020), it is an obligation of means. BBVA acknowledges that an undesirable outcome occurred as a result of the improper actions of one of its employees, who had access to the personal data of the complainant while providing services at the bank branch where the complainant had contracted the financial product; a series of measures were adopted. However, in BBVA's opinion, the employee had sufficient information and training in data protection to understand that their actions were not appropriate.

In this regard, this Agency wishes to point out that the documents accompanying the written claims regarding the initiation agreement of the present sanctioning procedure focus on generic issues related not only to personal data protection but also to the conduct and working methods of employees. In no case are specific measures established to be implemented by BBVA to prevent situations similar to the issue that gave rise to the present procedure.

On the other hand, this Agency does not consider that the obligation to implement security measures imposed by data protection regulations has a nature of an obligation of results rather than of means. However, it is equally true that BBVA did not adopt appropriate measures that "according to the state of technology and in relation to the nature of the processing carried out and the personal data in question, reasonably allow for the prevention of their alteration, loss, unauthorized processing, or access." It cannot be understood that a large entity such as BBVA, with a business volume of billions of euros and that continuously processes data of millions of people, did not have sufficient systems or mechanisms to prevent one of its employees from disclosing information about one of its clients to an unauthorized third party.

Moreover, the actions of the employee do not exempt BBVA from responsibility. The company's liability in the sanctioning context for the actions of an employee that constitute a breach of data protection regulations has been confirmed by the jurisprudence of the Supreme Court. In this regard, it should be noted that the Supreme Court ruling no. 188/2022 (Contentious Chamber, Section 3), dated

15 February 2022 (rec. 7359/2020), mentioned by BBVA in its written claims regarding the initiation agreement, states in its Fourth Legal Ground: "The fact that it was the negligent action of an employee does not exempt it from its responsibility regarding the proper use of the security measures that should have guaranteed the adequate use of the designed data registration system. As we already stated in STS no. 196/2020, of 15 February 2021 (rec. 1916/2020), the data controller is also responsible for the actions of its employees and cannot excuse itself based on its diligent actions, separately from the actions of its employees, but rather it is the 'culpable' actions of these, resulting from the violation of existing security measures, that underpin the company's liability in the sanctioning context for the 'own' acts of its employees or officers, not those of third parties."

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The ruling continues to argue about the responsibility of legal entities: "...It simply happens that, given the acceptance of direct liability of legal entities in our Administrative Law, which therefore recognizes their capacity to infringe, the subjective element of the infringement is manifested in these cases differently than it is with natural persons, so that, as indicated by the constitutional doctrine we have previously mentioned -SsTC STC 246/1991, of December 19 (F.J. 2) and 129/2003, of June 30 (F.J. 8)- the direct reproachability derives from the legal good protected by the norm that is infringed and the necessity for such protection to be truly effective and the risk that, consequently, the legal entity subject to compliance with that norm must assume." (the underlining is from this Agency).

For all the above, the present allegation is dismissed.

2. Violation of the non bis in idem principle

BBVA indicates that the Initiation Agreement includes a first proposal for a sanction for non-compliance with article 5.1.f) of the GDPR due to the "absence or insufficiency of those security measures leading to the appreciation that my client has not complied with the principles of security in the processing of personal data and a second proposal for a sanction for non-compliance with article 32 of the GDPR because BBVA "has not adopted the appropriate technical and organizational measures based on the estimated possible risks (in addition to the information and training directed at its employees)." Thus, the same facts (the insufficient security measures adopted by BBVA for processing personal data) would constitute two infringements of the same protected legal good; meeting the triple identity characteristic of the non bis in idem principle.

In this regard, this Agency wishes to point out that article 5.1.f) of the GDPR is violated when there is a loss of confidentiality, integrity, or availability of personal data, which may or may not occur due to the absence or deficiency of security measures. This principle merely determines the channel through which the maintenance of confidentiality, integrity, or availability can be achieved when it specifies "by applying appropriate technical and organizational measures," which are not strictly security measures. BBVA concludes that the appropriate technical and organizational measures referred to in this provision are the security measures of article 32 of the GDPR. This would simplify the essence of the GDPR, whose compliance is not limited to the implementation of technical and organizational security measures; it would mean, in our case, reducing the guarantee required by the principle of integrity and confidentiality to its achievement solely through security measures.

As we have pointed out previously, when article 5.1.f) of the GDPR refers to appropriate technical or organizational measures to guarantee the rights and freedoms of the data subjects within the framework of compliance management of the GDPR, it does so in the sense provided in article 25 of the GDPR regarding privacy by design.

This provision determines that,

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"Taking into account the state of the art, the cost of implementation, and the nature, scope, context, and purposes of the processing, as well as the risks of varying probability and severity that the processing entails for the rights and freedoms of individuals, the data controller shall apply, both at the time of determining the means of processing and at the time of the processing itself, appropriate technical and organizational measures, such as pseudonymization, designed to effectively apply the principles of data protection, such as data minimization, and to integrate the necessary safeguards into the processing, in order to comply with the requirements of this Regulation and protect the rights of the data subjects" (the underlining is ours).

This Agency reiterates that there are multiple technical or organizational measures that are not security-related and that the data controller can implement as a means to guarantee this principle. However, Article 32 of the GDPR includes the obligation to implement appropriate technical and organizational security measures to ensure a level of security appropriate to the risk. Security only. Moreover, its objective is to ensure a level of security appropriate to the risk, while in the case of Article 5.1(f) of the GDPR, confidentiality and integrity must be guaranteed. As can be seen, the two articles pursue different purposes, although they may be related.

Delving into the examination of non bis in idem, the Judgment of the National Court of July 23, 2021 (rec. 1/2017) states that:

"(...) According to the legislation and jurisprudence presented, the principle of non bis in idem prevents punishing the same subject twice for the same act based on the same grounds, understood as the same legal interest protected by the sanctioning norms in question. Indeed, when there is a triple identity of subject, act, and grounds, the sum of sanctions creates a sanction foreign to the proportionality assessment carried out by the legislator and materializes the imposition of a legally unprovided sanction that also violates the principle of proportionality.

But for there to be talk of "bis in idem," a triple identity must exist between the compared terms: objective (same facts), subjective (against the same subjects), and causal (for the same grounds or reason for punishment):

- a) The subjective identity implies that the affected subject must be the same, regardless of the nature or judicial or administrative authority judging and independently of who the accuser or specific body that has resolved is, or whether it is judged alone or in conjunction with other affected parties.
- b) The factual identity implies that the judged facts must be the same, and excludes cases of real concurrence of infractions where there is not a single unlawful act but several.
- c) The identity of grounds or causal identity implies that the sanctioning measures cannot coincide if they respond to the same nature, that is, if they share the same teleological foundation, which occurs between criminal and administrative sanctions, but not between punitive and merely coercive measures."

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Taking as a reference what has been previously stated in the sanctioning procedure, the principle of non bis in idem has not been violated, since, although the facts are broadly understood as a consequence of a violation of personal data security, the infringement of Article 5.1.f) of the GDPR specifically concerns a clear loss of confidentiality, while the infringement of Article 32 of the GDPR pertains to the absence and deficiencies of the security measures (only security) detected, which are present independently of the violation of personal data security. In fact, if the security measures that BBVA had implemented had been detected by this Agency without the loss of confidentiality occurring, it would have only been sanctioned under Article 32 of the GDPR. This is in response to the allegations made by BBVA, which considers that both provisions require a single conduct, which is to implement adequate security. This is not true, since Article 5.1.f) of the GDPR is not limited to ensuring adequate security relative to the risk, but rather to ensuring integrity and availability. And not only through security measures, but through all types of appropriate technical or organizational measures. As we have indicated, Article 5.1.f) of the GDPR sanctions a loss of confidentiality only, while Article 32

of the GDPR addresses the absence and deficiencies of the security measures implemented by the data controller. We add that absent or deficient security measures infringe the GDPR regardless of whether or not there has been a loss of confidentiality and availability.

Therefore, the principle of non bis in idem is not considered violated in the present sanctioning procedure.

3. Subsidiarily, existence of medial concurrence between the two behaviors attributed to BBVA BBVA argues that the Initiation Agreement identifies a plurality of infringements that the entity would have supposedly committed when, in reality, one of them would be subsumed within the other, resulting in medial concurrence in the terms provided in Article 29.5 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector. For, “the failure to apply measures that the AEPD considers necessary to implement would stem from, in the opinion of the AEPD and contrary to my client's view, the inadequate compliance with the principle of data security, from which the failure to apply such measures would derive” (hereinafter, LRJSP).

In this regard, this Agency wishes to remind that Article 29 of the LRJSP does not apply to the sanctioning regime imposed by the GDPR.

The GDPR is a community regulation directly applicable in the Member States, which contains a new, closed, complete, and global system aimed at ensuring the protection of personal data uniformly throughout the European Union.

In relation, specifically and also, to the sanctioning regime provided therein, its provisions apply immediately, directly, and integrally, providing a complete and gapless system that must be understood, interpreted, and integrated absolutely, completely, and integrally, thus leaving intact.

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its ultimate purpose, which is the effective and real guarantee of the Fundamental Right to the Protection of Personal Data. The opposite results in a reduction of the guarantees of the rights and freedoms of citizens.

In fact, a specific example of the absence of gaps in the GDPR system is Article 83 of the GDPR, which determines the circumstances that may operate as aggravating or mitigating factors regarding an infringement (Article 83.2 of the GDPR) or specifies the existing rule concerning a possible concurrent liability (Article 83.3 of the GDPR).

In addition to the above, we must add that the GDPR does not allow for the development or specification of its provisions by the legislators of the Member States, except for what the European legislator has specifically provided, delimiting it very concretely (for example, the provision of Article 83.7 of the GDPR). The LOPDGDD only develops or specifies some aspects of the GDPR to the extent that it allows and with the scope that it permits.

This is so because the purpose intended by the European legislator is to implement a uniform system throughout the European Union that guarantees the rights and freedoms of natural persons, corrects behaviors contrary to the GDPR, promotes compliance, and enables the free movement of these data. In this sense, Recital 2 of the GDPR states that,

“(2) The principles and rules concerning the protection of natural persons with regard to the processing of their personal data must, irrespective of their nationality or residence, respect their fundamental freedoms and rights, in particular the right to the protection of personal data. This Regulation aims to contribute to the full realization of an area of freedom, security, and justice and of an economic union, to economic and social progress, to the strengthening and convergence of economies within the internal market, as well as to the well-being of natural persons.” (the emphasis is from this Agency)

Recital 13 of the GDPR further indicates that,

“(13) To ensure a consistent level of protection for natural persons throughout the Union and to avoid divergences that hinder the free movement of personal data within the internal market, a regulation is necessary that provides legal certainty and transparency to economic operators, including microenterprises and small and medium-sized enterprises, and offers natural persons in all Member

States the same level of enforceable rights and obligations and responsibilities for controllers and processors, in order to ensure consistent supervision of personal data processing and equivalent sanctions in all Member States, as well as effective cooperation between the supervisory authorities of the different Member States. The proper functioning of the internal market requires that the free movement of personal data in the Union is not restricted or prohibited for reasons related to the protection of natural persons with regard to the processing of personal data." (the emphasis is from this Agency).

Consequently, it signifies that there is no legal gap regarding the application of concurrent liability. Neither the GDPR allows nor does the LOPDGDD provide for the supplementary application of the provisions of Article 29 of the LRJSP.

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In Title VIII of the LOPDGDD relating to "Procedures in the event of a possible violation of data protection regulations," Article 63 that opens the Title states that "The procedures processed by the Spanish Agency for Data Protection will be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued in its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures." While there is a clear reference to the LPACAP, there is absolutely no subsidiary application regarding the LRJSP, which does not contain any provision related to any administrative procedure.

Similarly, this Agency is not applying the aggravating and mitigating factors provided for in Article 29 of the LRJSP, since the GDPR establishes its own, therefore, there is no legal gap or subsidiary application of the same, nor can the section relating to medial competition be applied for the same reasons.

For the reasons stated, and focusing on the present case, it should be emphasized that there is no medial competition.

Article 29.5 of the LRJSP states that "When the commission of an infringement necessarily results in the commission of another or others, only the sanction corresponding to the most serious infringement committed shall be imposed." Thus, medial competition occurs when, in a specific case, the commission of one infringement is a necessary means to commit another distinct one.

The established facts determine the commission of two distinct infringements, without the lack of application of the measures referred to in Article 32 of the GDPR, as BBVA asserts, being the necessary means by which the infringement of 5.1.f) of the GDPR occurs.

IV

Integrity and confidentiality

Article 5.1.f) "Principles relating to processing" of the GDPR states:

"1. Personal data shall be:

(...)

f) processed in such a way as to ensure an appropriate level of security of personal data, including protection against unauthorized or unlawful processing and against accidental loss, destruction, or damage, by means of appropriate technical or organizational measures ('integrity and confidentiality')."

In this case, on 12/05/2021, an employee of BBVA issued a "Consultation of Economic Movements of Pension Plans" relating to a financial product owned exclusively by the claimant in favor of their ex-partner; allowing unauthorized access by a third party to personal data such as their name and surname, ID number; and financial data such as account contract, type, and movements of the pension plan and balance.

Furthermore, in its written allegations to the initiation agreement of 13/06/2023, BBVA acknowledges that an "undesired result occurred and that this result stems from an improper action by an employee who had sufficient knowledge in data protection to understand that such processing was not appropriate."

In light of the above, BBVA acknowledges that the confidentiality of the personal data of the claimant

linked to their Pension Plan was affected, as it was made available to an unauthorized third party. At this moment, unauthorized access occurred.

Therefore, in accordance with the evidence available at this moment of the proposed resolution of the sanctioning procedure, and without prejudice to what results from the instruction, it is considered that the known facts could constitute an infringement, attributable to BBVA, for violation of Article 5.1.f) of the GDPR.

V

Classification and qualification of the infringement of Article 5.1.f) of the GDPR

If confirmed, the aforementioned infringement of Article 5.1.f) of the GDPR could imply the commission of the infringements classified in Article 83.5 of the GDPR which under the heading "General conditions for the imposition of administrative fines" states:

"Infringements of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to 4% at most of the total annual global turnover of the previous financial year, opting for the higher amount:

a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9; (...)"

For the purposes of the limitation period, Article 72 "Infringements considered very serious" of the LOPDGDD indicates:

"1. Based on what is established in Article 83.5 of Regulation (EU) 2016/679, the following infringements shall be considered very serious and shall be subject to a limitation period of three years, which involve a substantial violation of the articles mentioned therein and, in particular, the following:

a) The processing of personal data violating the principles and guarantees established in Article 5 of Regulation (EU) 2016/679. (...)"

VI

Proposal for sanction for the infringement of Article 5.1.f) of the GDPR

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For the purpose of deciding on the imposition of an administrative fine and its amount, in accordance with the evidence available at this moment in the proposed resolution of the sanctioning procedure, and without prejudice to what results from the instruction, it is considered appropriate to graduate the sanction to be imposed according to the following criteria established in Article 83.2 of the GDPR:

As aggravating circumstances:

- Any previous infringement committed by the data controller or the processor (paragraph e): this Agency has two sanctioning procedures (PS/00419/2022 and PS/00429/2022) in which resolution decisions were adopted on 28/09/2022 and 11/11/2022. In both cases, BBVA is charged with the infringement of Article 5.1.f).

It is also considered appropriate to graduate the sanction to be imposed according to the following criteria established in paragraph 2 of Article 76 "Sanctions and corrective measures" of the LOPDGDD:

As aggravating circumstances:

- The link of the infringer's activity with the processing of personal data (paragraph b): BBVA is an entity that systematically and continuously processes personal and financial data and must exercise utmost care in complying with its obligations regarding data protection.

The balance of the circumstances contemplated in Article 83.2 of the GDPR and 76.2 of the LOPDGDD, regarding the infringement committed by violating the provisions of Article 5.1.f) of the GDPR, allows for the proposal of a sanction of 50,000 euros (fifty thousand euros).

VII

Security of processing

Article 32 of the GDPR, "Security of processing," establishes:

“1. Taking into account the state of the art, the costs of implementation, and the nature, scope, context, and purposes of the processing, as well as the risks of varying likelihood and severity for the rights and freedoms of natural persons, the controller and the processor shall implement appropriate technical and organizational measures to ensure a level of security appropriate to the risk, which may include, among others:

- a) the pseudonymization and encryption of personal data;
- b) the ability to ensure the ongoing confidentiality, integrity, availability, and resilience of processing systems and services;
- c) the ability to restore the availability and access to personal data quickly in the event of a physical or technical incident;
- d) a process for regularly verifying, assessing, and evaluating the effectiveness of the technical and organizational measures to ensure the security of processing.

2. In assessing the appropriateness of the level of security, particular consideration shall be given to the risks presented by the processing of data, in particular as a consequence of the accidental or unlawful destruction, loss, or alteration of personal data transmitted, stored, or otherwise processed, or the unauthorized communication or access to such data.

3. Adherence to an approved code of conduct pursuant to Article 40 or to an approved certification mechanism pursuant to Article 42 may serve as an element to demonstrate compliance with the requirements set out in paragraph 1 of this article.

4. The controller and the processor shall take measures to ensure that any person acting under the authority of the controller or the processor and having access to personal data only processes such data on instructions from the controller, unless required to do so by Union or Member State law.”

In this case, at the time of the security breach, BBVA did not adopt sufficient technical and organizational security measures to prevent an employee from disclosing customer information to an unauthorized third party, thereby exposing their personal and financial data.

While it is true that BBVA had some measures directed at employees regarding the protection of personal data, such as providing information and training; it is evident that the measures are insufficient to prevent an incident similar to the issue that gave rise to this procedure. Furthermore, it is not enough for BBVA, as the data controller, to implement security measures; it must also ensure their compliance.

For all these reasons, in accordance with the evidence available at this moment in the proposed resolution of the sanctioning procedure, and without prejudice to what results from the instruction, it is considered that the known facts could constitute an infringement, attributable to BBVA, for violating Article 32 of the GDPR.

VIII

Classification of the infringement of Article 32 of the GDPR

If confirmed, the aforementioned infringement of Article 32 of the GDPR could constitute the commission of the infringements classified in Article 83.4 of the GDPR, which under the heading “General conditions for the imposition of administrative fines” provides:

“Infringements of the following provisions shall be subject to administrative fines of up to 10,000,000 EUR or, in the case of an undertaking, an amount equivalent to a maximum of 2% of...

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total annual global turnover of the previous financial year, opting for the highest amount:

- a) the obligations of the data controller and the data processor pursuant to Articles 8, 11, 25 to 39, 42, and 43; (...)

For the purposes of the statute of limitations, Article 73 “Serious Offenses” of the LOPDGDD indicates: “According to what is established in Article 83.4 of Regulation (EU) 2016/679, the following offenses are considered serious and will be subject to a two-year statute of limitations for substantial violations of the articles mentioned therein, particularly the following:

(...)

- f)

The failure to adopt those technical and organizational measures that are appropriate to ensure a level of security adequate to the risk of processing, as required by Article 32.1 of Regulation (EU)

2016/679.” (...)

VIII

Proposal for sanction for the violation of Article 32 of the GDPR

For the purpose of deciding on the imposition of an administrative fine and its amount, in accordance with the evidence available at this moment of the proposed resolution of the sanctioning procedure, and without prejudice to what may result from the instruction, it is considered appropriate to adjust the sanction to be imposed according to the following criteria established in Article 83.2 of the GDPR:

As aggravating circumstances:

- Any previous offense committed by the data controller or the data processor (paragraph e): this Agency has two sanctioning procedures (PS/00419/2022 and PS/00429/2022) in which resolution decisions were adopted on 28/09/2022 and 11/11/2022. In both cases, BBVA is charged with the violation of Article 32 of the GDPR.

It is also considered appropriate to adjust the sanction to be imposed according to the following criteria established in paragraph 2 of Article 76 “Sanctions and corrective measures” of the LOPDGDD:

As aggravating circumstances:

- The connection of the offender's activity with the processing of personal data (paragraph b): BBVA, a financial entity, and the large number of clients it has, involves handling a large number of personal data. This implies that they have sufficient experience and should have the appropriate knowledge for the processing of such data.

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The balance of the circumstances contemplated in Article 83.2 of the GDPR and 76.2 of the LOPDGDD, regarding the offense committed by violating what is established in Article 32 of the GDPR, allows for proposing a sanction of €20,000 (twenty thousand euros).

IX

Adoption of measures

If the violation is confirmed, in accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR, under which each supervisory authority may “order the data controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified period...”, in the resolution that is adopted, BBVA may be required to notify this Agency within six months of the adoption of the following measures, without prejudice to others that may arise from the instruction of the procedure:

- To demonstrate within six months the effective application of appropriate technical and organizational security measures, not only to comply with the regulations but also to demonstrate compliance to the supervisory authorities and interested parties.

The imposition of this measure is compatible with the sanction consisting of an administrative fine, as provided in Article 83.2 of the GDPR.

It is warned that failure to comply with the possible order to adopt measures imposed by this agency in the sanctioning resolution may be considered an administrative offense in accordance with the provisions of the GDPR, classified as an offense in Articles 83.5 and 83.6, which may lead to the initiation of further administrative sanctioning procedures.

In light of the above, the following

PROPOSAL FOR RESOLUTION

is issued by the Director of the Spanish Agency for Data Protection to sanction

BANCO BILBAO VIZCAYA ARGENTARIA, S.A., with NIF A48265169:

- For a violation of Article 5.1.f) of the GDPR, classified in Article 83.5 of the GDPR, with an administrative fine of €50,000 (fifty thousand euros).

- For a violation of Article 32 of the GDPR, classified in Article 83.4 of the GDPR, with a fine of €20,000 (twenty thousand euros).

Furthermore, in accordance with the provisions of Article 85.2 of the LPACAP, it is informed that it may, at any time prior to the resolution of this procedure, make voluntary payment of the proposed sanction, which will entail a reduction of 20% of its amount. With the application of this reduction, the sanction would be established at €56,000 (fifty-six thousand euros) and its payment will imply the termination of the procedure, without prejudice to the imposition of

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the corresponding measures. The effectiveness of this reduction will be conditioned upon the withdrawal or renunciation of any administrative action or appeal against the sanction.

In the event that you choose to proceed with the voluntary payment of the amount specified above, in accordance with the provisions of the aforementioned Article 85.2, you must make it effective by depositing it into the restricted account no. IBAN: ES00-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX) opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A., indicating in the concept the reference number of the procedure that appears in the heading of this document and the reason, for voluntary payment, for the reduction of the amount of the sanction. Furthermore, you must send the proof of deposit to the General Sub-Directorate of Inspection to proceed with closing the file.

In virtue of the above, you are notified of the preceding, and the procedure is brought to your attention so that within TEN DAYS you may allege whatever you deem appropriate in your defense and present the documents and information you consider pertinent, in accordance with Article 89.2 of the LPACAP.
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C.C.C.
INSPECTOR/INSTRUCTOR
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ANNEX

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SECOND: On January 3, 2024, the respondent has proceeded to pay the sanction in the amount of 56,000 euros making use of the reduction provided for in the resolution proposal transcribed above.

THIRD: The payment made entails the renunciation of any action or appeal in the administrative route against the sanction, in relation to the facts referred to in the resolution proposal.

FOURTH: On January 9, 2024, BBVA submitted a written statement of allegations to the resolution proposal before this Agency.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), to each supervisory authority and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection will be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development and, insofar as they do not contradict them, subsidiarily by the general rules on administrative procedures."

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Termination of the procedure

Article 85 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), under the heading "Termination in sanctioning procedures" provides as follows:

"1. Once a sanctioning procedure has been initiated, if the offender acknowledges their responsibility, the procedure may be resolved with the imposition of the appropriate sanction.

2. When the sanction is solely of a pecuniary nature or when it is possible to impose a pecuniary sanction and another non-pecuniary sanction but the impropriety of the latter has been justified, voluntary payment by the alleged responsible party, at any time prior to the resolution, will imply the termination of the procedure, except regarding the restoration of the altered situation or the determination of compensation for the damages caused by the commission of the infringement.

3. In both cases, when the sanction is solely of a pecuniary nature, the competent body to resolve the procedure will apply reductions of at least 20% on the amount of the proposed sanction, which are cumulative. The aforementioned reductions must be specified in the notification of initiation of the procedure, and their effectiveness will be conditioned upon the withdrawal or renunciation of any action or administrative appeal against the sanction. The percentage of reduction provided in this section may be increased by regulation."

In accordance with the above,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DECLARE the termination of procedure EXP202213406, in accordance with the provisions of Article 85 of the LPACAP.

SECOND: TO NOTIFY this resolution to BANCO BILBAO VIZCAYA ARGENTARIA, S.A.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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